



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 10692
(SIXTH REVISION)

JUN 13 2001

EXPIRATION DATE: May 31, 2003

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: ProTank, Incorporated
Daytona Beach, Florida
2. PURPOSE AND LIMITATIONS: This exemption authorizes the manufacture, marking and sale of non-DOT specification cylinders comparable to specification DOT 4BW to be used for the transportation in commerce of the Division 2.1 gas described in paragraph 6 below. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.304(a) only insofar as the prescribed packaging is not listed as an authorized packaging.
5. BASIS: This exemption is based on the application of Protank, Incorporated dated June 5, 2001, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Petroleum gases, liquefied or Liquefied petroleum gas	2.1	UN1075	N/A

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7. SAFETY CONTROL MEASURES:

a. Packaging prescribed is a non-DOT specification cylinder conforming to the configurations and dimensions shown in Technical Manufactured Products' drawings 080-0121-4 Rev.B, 080-0124-4 Rev.A, 080-0127-4, 080-0156-4, 080-0166-4, 080-0191-4, 080-0198-4, and 080-0128-4 on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). In addition, packaging must conform with DOT Specification 4BW (§ 178.61), except as follows:

1. § 178.61(b)- Authorized Steel: The material of construction must be ASTM A240 Type 304L stainless steel. The tensile strength measured from a tensile specimen taken from a completed cylinder may not exceed 93,000 psi. Tensile tests must be performed as specified in § 178.61(j).

2. § 178.61(d)(3)(ii) - One cylinder from each lot of 50 consecutively welded cylinders must be spot radiographed for defects such as excessive porosity, lack of fusion and crack-like defects in accordance with the criteria set forth in § 178.61(m).

3. § 178.61(g) - The cylinders need not be heat treated.

4. § 178.61(j)

(i) Specimens must be taken from one cylinder not heat treated

5. § 178.61(o) - Marking.

* * *

Each cylinder must be marked, "DOT-E 10692", in lieu of "DOT 4BW".

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this exemption for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this exemption.

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- b. A person who is not a holder of this exemption, but receives a package covered by this exemption, may reoffer it for transportation provided no modification or change is made to the package or its contents and it is offered for transportation in conformance with this exemption and the HMR.
- c. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.
- d. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Exemptions and Approvals for a specific manufacturing facility.
- e. A current copy of this exemption must be maintained at each facility where the package is manufactured under this exemption. It must be made available to a DOT representative upon request.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: There are no modal specific requirements.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued in Washington, D.C.



for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: sln